SECURITY IRELAND POLICY PROPOSAL

A Proportionality Framework for Military Aid to the Civil Power

On 9 April 2026, the Minister for Justice deployed the Defence Forces against civilian fuel protesters using a legal framework that has not been substantially updated since 1954. The Defence Act provides broad authority but no proportionality test, no escalation protocol, no time limitation, no parliamentary oversight, and no published rules of engagement. This proposal sets out a seven-part framework that would bring Ireland's aid to the civil power provisions in line with democratic standards maintained by every comparable EU member state.

Security Ireland

April 2026

THE PROBLEM

The Defence Act 1954 gives the government authority to deploy the Defence Forces in aid to the civil power when requested by An Garda Síochána via the C70 process. This authority is necessary. But it is also unlimited: no statutory proportionality test, no defined escalation sequence, no time limit, no parliamentary notification, no independent oversight, no published domestic rules of engagement, and no liability framework for property damage.

Germany's constitution prohibits using military forces for police duties. France requires graduated escalation through specialist public order forces before any military involvement. Italy, Spain, the Netherlands, and Austria all maintain intermediate capabilities and statutory safeguards. Ireland has none of these constraints and none of these alternatives.

The result on 9 April 2026: a Minister for Justice deploying soldiers to remove tractors from public roads, pre-emptively telling citizens not to complain about property damage, with no proportionality test applied, no escalation protocol followed, no time limit set, and no parliamentary notification given. This is not how a modern European democracy manages civil disorder.

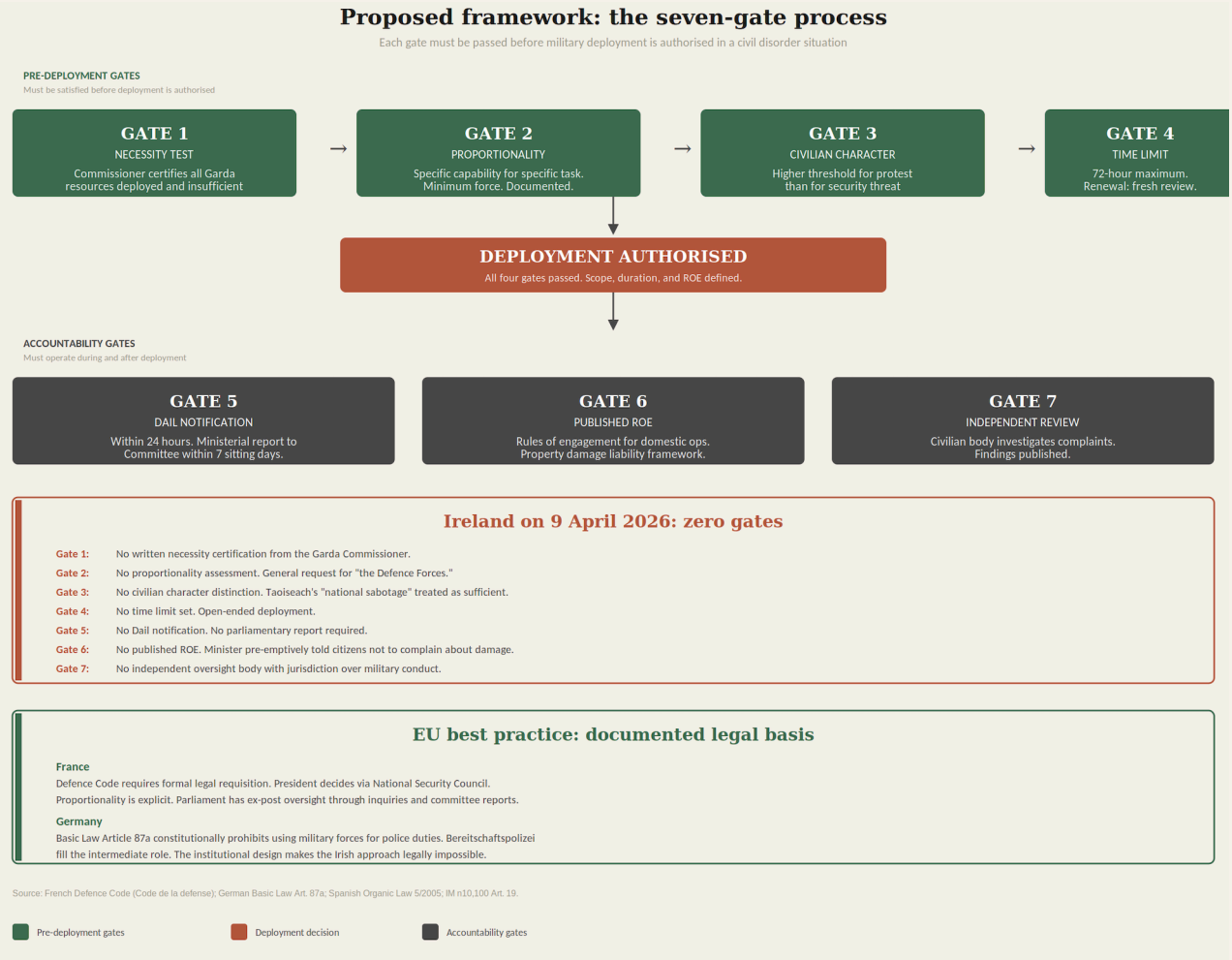

Figure 1: The proposed seven-gate process. Four pre-deployment gates must be passed before military deployment is authorised. Three accountability gates operate during and after deployment. On 9 April 2026, Ireland passed zero of these gates. The EU best practice box shows the documented legal basis that France, Germany, and Spain maintain. Sources: French Defence Code, German Basic Law Art. 87a, Spanish Organic Law 5/2005.

The proposed framework

The following seven requirements should be enacted as amendments to the Defence Act 1954, or as standalone legislation governing military aid to the civil power in domestic civil disorder situations. They do not apply to security threats (terrorism, armed crime, constitutional emergency) where existing provisions are appropriate.

1. The Necessity Test

Requirement: Before a C70 form is issued for a civil disorder situation, the Garda Commissioner must certify in writing that all available Garda resources have been deployed or assessed and are insufficient.

What this means: The certification must confirm that the following have been considered and are inadequate: mutual aid from other Garda divisions, the Public Order Unit, the Armed Support Unit, the Emergency Response Unit, Garda specialist vehicles and equipment, and any available civilian contractor capability (e.g. commercial heavy vehicle removal).

Why it matters: Military deployment must be demonstrably the last resort, not the first option. The Garda Commissioner's written certification creates accountability and a reviewable record. If the military is deployed without this certification, the deployment is procedurally deficient.

2. The Proportionality Test

Requirement: The C70 request must specify the nature of the situation, the specific military capability required, and why that capability is proportionate to the threat or disruption.

What this means: The request cannot be for 'the Defence Forces' in general. It must specify a defined capability for a defined task: heavy vehicle removal capability, engineering support, logistics, or specialist equipment. The level of force authorised must be stated. Armed deployment must require a higher threshold than unarmed support.

The proportionality standard: The military capability deployed must be the minimum necessary to achieve the specific objective. Deploying combat-trained infantry to remove vehicles from roads is not proportionate if engineering personnel with heavy equipment would suffice. The proportionality assessment must be documented and retained.

3. The Civilian Character Distinction

Requirement: The framework must formally distinguish between security threats and civil disorder. For civil disorder — protest, industrial action, infrastructure blockade by civilians — the threshold for military deployment must be higher than for security threats.

The threshold for civil disorder: Military deployment is authorised only when the situation poses an immediate, demonstrable risk to life, to the continuous operation of essential services (hospitals, emergency services, water supply), or to critical national infrastructure as defined in legislation — and when no non-military means can resolve the situation within a reasonable timeframe.

What does not meet the threshold: Traffic disruption, economic inconvenience, public transport delays, political embarrassment, or disruption to commercial activity. These are serious but they are policing problems, not military problems. A political characterisation — such as the Taoiseach describing a blockade as 'national sabotage' — does not constitute a legal threshold.

4. Time Limitation and Renewal

Requirement: Every domestic military deployment under aid to the civil power must be time-limited. The initial authorisation must specify a maximum duration of 72 hours.

Renewal: If the deployment is required beyond 72 hours, the Minister must issue a written renewal with a fresh proportionality assessment. Each renewal is limited to a further 72 hours. There is no provision for open-ended deployment.

Automatic lapse: If no renewal is issued, the deployment authority lapses automatically at the expiry of the authorised period. Defence Forces personnel must be withdrawn. The Garda Commissioner resumes sole operational responsibility.

5. Parliamentary Notification and Review

Requirement: The Dáil must be notified within 24 hours of any domestic military deployment under aid to the civil power.

Ministerial report: Within 7 sitting days, the responsible Minister (Justice or Defence, as appropriate) must present a written report to the Oireachtas Committee on Defence and National Security. The report must include: the legal basis for deployment, the Garda Commissioner's necessity certification, the proportionality assessment, the scope and duration authorised, the rules of engagement applied, any incidents of use of force or property damage, and the estimated cost to the Defence Forces.

Committee review: The Committee has the power to summon the Garda Commissioner, the Chief of Staff, and the relevant Minister to give evidence on the deployment. This is not optional — it is a standing requirement for every domestic military deployment.

6. Rules of Engagement and Property Damage

Requirement: Published rules of engagement must exist for domestic aid to the civil power operations involving civil disorder. These ROE must be available to Defence Forces personnel before deployment and must be published (in summary form) for public transparency.

The ROE must address: The level of physical force authorised for moving persons. The level of force authorised for moving vehicles and equipment. Whether and when restraint of persons is authorised. The circumstances in which weapons may be drawn (if any — for civil disorder, the default should be unarmed deployment). The obligation to identify as Defence Forces personnel. The obligation to provide warnings before any use of force.

Property damage: The state is liable for disproportionate damage to private property during aid to the civil power operations. A pre-agreed liability framework must exist, including: a defined process for property damage claims, a presumption that the state bears the burden of proving proportionality, and a prohibition on ministerial statements that purport to waive liability or discourage claims. The Minister's statement of 9 April — 'should not complain later about any damage caused' — would be impermissible under this framework.

7. Independent Oversight

Requirement: An independent civilian body must have jurisdiction to investigate complaints arising from military conduct during domestic aid to the civil power operations.

Options: This function could be assigned to the Garda Síochána Ombudsman Commission (GSOC) with expanded jurisdiction, to the Ombudsman for the Defence Forces with expanded powers, or to a new independent body. The key requirement is independence from both the military chain of command and the ministerial authority that authorised the deployment.

Scope: The oversight body must have the power to investigate: use of force complaints, property damage complaints, proportionality of the deployment itself, compliance with the rules of engagement, and any failure to follow the notification and reporting requirements. Its findings must be published.

> *The question is not whether the government had the legal authority to deploy on 9 April, but whether a democracy should deploy its military against civilian protesters with no proportionality test, no time limit, no parliamentary oversight, no rules of engagement, and no independent review. Every comparable European state has answered that question. Ireland has not.*

How this framework would have applied on 9 April 2026

APPLICATION TO 9 APRIL 2026

Necessity test: The Garda Commissioner would have been required to certify that all Garda resources — including the Public Order Unit and commercial heavy vehicle removal — were insufficient. This certification would be part of the public record.

Proportionality test: The C70 would have had to specify 'heavy vehicle removal capability' rather than a general request for Defence Forces assistance. The proportionality assessment would have been documented.

Civilian character distinction: The Minister would have had to demonstrate immediate risk to life or essential services — not just traffic disruption or economic inconvenience. The Taoiseach's characterisation of 'national sabotage' would not constitute a legal threshold.

Time limitation: The deployment would have been limited to 72 hours. If the situation persisted, a fresh assessment and renewal would have been required — with a written justification.

Parliamentary notification: The Dáil would have been notified within 24 hours. The Minister would have been required to report to the Defence Committee within 7 sitting days.

Rules of engagement: Defence Forces personnel would have deployed with published ROE specifying what force was authorised for vehicle removal. The Minister's statement pre-empting complaints about property damage would have been impermissible.

Independent oversight: Any property damage or use of force complaints would have been investigated by an independent body, not by the military chain of command that executed the deployment.

Implementation

This framework can be implemented through three routes, in order of preference:

Primary legislation. Amendment to the Defence Act 1954, inserting a new Part governing the exercise of aid to the civil power in civil disorder situations. This provides the strongest legal foundation and the clearest democratic mandate. A Bill could be drafted within months and introduced before the Presidency.

Ministerial directive. In the absence of legislation, the Minister for Defence could issue a directive to the Chief of Staff establishing administrative proportionality requirements, reporting obligations, and rules of engagement for domestic deployment. This is faster but legally weaker — a directive can be withdrawn by a future Minister.

Oireachtas Committee recommendation. The Committee on Defence and National Security could recommend the framework in a formal report, creating political pressure for legislative action. This is the most immediately achievable route and could be initiated at the Committee's next meeting.

SERIES CONTEXT

Policy proposal responding to the Defence Forces deployment of 9 April 2026. Companion to *The Crisis Management Gap* (the intermediate capability absence), *Soldiers Against Tractors* (the C70 process and four accountability gaps), and the *Security & Defence Policy Checklist* (49 frameworks assessed, 32 missing). Part of the Security Ireland policy proposal series.

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